

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 592

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO PATIENT IMMIGRATION STATUS; AMENDING CHAPTER 13, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-1397, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING PATIENT IMMIGRATION STATUS DATA COLLECTION AND TO DEFINE A TERM; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 13, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-1397, Idaho Code, and to read as follows:

39-1397. PATIENT IMMIGRATION STATUS DATA COLLECTION. (1) Every hospital that accepts medicaid shall include a provision on its patient admission or registration forms for the patient or the patient's representative to state or indicate the immigration status of the patient, including whether the patient is a United States citizen or lawfully present in the United States or is not lawfully present in the United States. The inquiry shall be followed by a statement that the response will not affect patient care or result in a report of the patient's immigration status to immigration authorities.

(2) Every hospital shall submit a quarterly report to the Idaho department of health and welfare within thirty (30) days after the end of each calendar quarter. Such report shall include the number of hospital admissions or emergency department visits within the previous quarter that were made by a patient self-reporting as a citizen of the United States, as being lawfully present in the United States, or as being not lawfully present in the United States.

(3) By March 1 of each year, the department of health and welfare shall submit a report to the governor, the president pro tempore of the senate, and the speaker of the house of representatives. The report shall include the total number of hospital admissions and emergency department visits for the previous calendar year broken down by the three (3) categories described in subsection (2) of this section. The report shall also describe information relating to the costs of uncompensated care for aliens who are not lawfully present in the United States, the impact of uncompensated care on the cost or ability of hospitals to provide services to the public, hospital funding needs, and other related information.

(4) The department of health and welfare may promulgate rules, subject to legislative approval, relating to the format of and information to be contained in quarterly reports and the acceptable formats for hospitals to use in requesting information regarding a patient's immigration status on hospital admission or registration forms. The rules may not require the disclo-

1 sure of patient names or any other personal identifying information to the  
2 department of health and welfare.

3 (5) As used in this section, "immigration status" means a person's le-  
4 gal status in the United States as governed by the immigration and national-  
5 ity act. "Immigration status" includes the following groups:

6 (a) Individuals with citizenship who are born within the territorial  
7 limits of the United States or who have successfully completed the natu-  
8 ralization process after living as a permanent resident for a specified  
9 period;

10 (b) Permanent residents, including lawful permanent residents who  
11 are granted authorization to live and work in the United States in-  
12 definitely and conditional permanent residents who have gained status  
13 through marriage or certain investor programs, which status is contin-  
14 gent on fulfilling specific conditions;

15 (c) Nonimmigrants who are authorized to enter the United States only  
16 temporarily for certain purposes, such as students or temporary work-  
17 ers;

18 (d) Refugees and asylees who have been admitted to the United States  
19 as a refugee, have been granted asylum, or can provide documentary evi-  
20 dence that they have applied for asylum; and

21 (e) Undocumented migrants or illegal aliens who have overstayed their  
22 visa or entered the United States without authorization regardless of  
23 any temporary status they may have been granted by the department of  
24 homeland security allowing them to be present in the United States.

25 SECTION 2. An emergency existing therefor, which emergency is hereby  
26 declared to exist, this act shall be in full force and effect on and after  
27 July 1, 2026.